

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Public Health (Scotland) Act, 1897 ...	60 & 61 Vict. c. 38.
Protection of Animals Act, 1911 ...	1 & 2 Geo. 5. c. 27.
Protection of Animals (Scotland) Act, 1912...	2 & 3 Geo. 5. c. 14.
Slaughter of Animals (Scotland) Act, 1928 ...	18 & 19 Geo. 5. c. 29.
Slaughter of Animals Act, 1933 ...	23 & 24 Geo. 5. c. 39.
Public Health (London) Act, 1936 ...	26 Geo. 5. & 1 Edw. 8. c. 50.
Food and Drugs Act, 1938 ...	1 & 2 Geo. 6. c. 56.
Local Government Act, 1948 ...	11 & 12 Geo. 6. c. 26.
Criminal Justice (Scotland) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 94.
Diseases of Animals Act, 1950 ...	14 Geo. 6. c. 36.
Slaughter of Animals (Amendment) Act, 1951	14 & 15 Geo. 6. c. 49.
Magistrates' Courts Act, 1952 ...	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Slaughter of Animals (Pigs) Act, 1953 ...	1 & 2 Eliz. 2. c. 27.
Local Government (Financial Provisions) (Scotland) Act, 1954 ...	2 & 3 Eliz. 2. c. 13.
Slaughterhouses Act, 1954 ...	2 & 3 Eliz. 2. c. 42.

CHAPTER 60

Electricity Reorganisation (Scotland) Act, 1954

ARRANGEMENT OF SECTIONS

PART I

REORGANISATION

Section

1. Transfer of the functions of the Minister of Fuel and Power to the Secretary of State.
2. Establishment and functions of the South of Scotland Electricity Board.
3. Termination of the functions of the Central Authority in the North of Scotland District and dissolution of the Scottish Area Boards.

PART II

TRANSFERS OF UNDERTAKINGS

4. Transfers of assets and liabilities of Scottish Area Boards.
5. Transfer of Central Authority's undertaking in Scotland.
6. Further provisions as to transfers.
7. Financial adjustment between the South of Scotland Board and the Central Authority.
8. Supplementary provisions.

PART III

FINANCIAL PROVISIONS

Section

9. Payments by the South of Scotland Board under Part V of the Local Government Act, 1948.
10. Amendments to s. 47 of the Act of 1947.

PART IV

MISCELLANEOUS AND GENERAL

11. Disputes between Electricity Boards.
12. Compensation to officers and members of Boards in connection with transfers.
13. Expenses.
14. Interpretation.
15. Adaptation of enactments and repeals.
16. Savings.
17. Short title and citation.

SCHEDULES:

First Schedule—Adaptation of enactments.

Second Schedule—Enactments repealed.

An Act to transfer the functions of the Minister of Fuel and Power in Scotland in relation to electricity to the Secretary of State ; to establish the South of Scotland Electricity Board; to transfer the functions of the British Electricity Authority in the south of Scotland and of the Scottish Area Boards to that Board; to amend the Hydro-Electric Development (Scotland) Act, 1943; and for purposes connected therewith.

[25th November, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

REORGANISATION

1.—(1) Subject to the provisions of this Act, on the vesting date there shall be transferred to the Secretary of State the functions of the Minister so far as they relate to the generation and supply of electricity in Scotland and matters connected therewith, and the giving of consents in relation to such functions under the Electricity (Supply) Acts, 1882 to 1926, or under the Act of 1947 (including any enactment incorporated therewith) or under regulations made under any of those enactments.

Transfer of the
functions of
the Minister
of Fuel and
Power
to the Secretary
of State.

PART I
—cont.

(2) Subject to the provisions of this Act, on the vesting date there shall be transferred to the Secretary of State the functions of the Minister and the Secretary of State acting jointly under the Act of 1943, and, so far as they relate exclusively to Scotland, the functions of the Minister and the Secretary of State acting jointly under the Act of 1947.

(3) On the vesting date the functions of the Minister in relation to the making of regulations under section four of the Electric Lighting Act, 1888, and under section sixty of the Act of 1947 (which empower the Minister to make regulations relating to safety and the efficiency of supply of electricity) shall be transferred to the Secretary of State and the Minister acting jointly.

(4) Nothing in the provisions of this section shall affect the functions of the Minister under the Schedule to the Electric Lighting (Clauses) Act, 1899, as incorporated with the Act of 1947, so far as that Schedule relates to the certification of meters and the measurement of electricity, or under the Electricity Supply (Meters) Act, 1936.

**Establishment
and functions
of South of
Scotland
Electricity
Board.**

2.—(1) There shall be established a public authority for the district (hereinafter referred to as the South of Scotland District) comprising the areas of the South East Scotland Electricity Board and the South West Scotland Electricity Board immediately before the coming into operation of this Act to be known as the South of Scotland Electricity Board (in this Act referred to as the South of Scotland Board), and consisting of persons appointed in accordance with the First Schedule to the Act of 1943.

(2) Subject to the provisions of this Act, the South of Scotland Board, as from the vesting date, shall have in relation to the South of Scotland District the like functions as the North of Scotland Board have in relation to the North of Scotland District, and in so far as those functions immediately before that date are functions of the Central Authority in relation to the District first-mentioned, or of the South East Scotland or South West Scotland Electricity Board, they shall be transferred to the South of Scotland Board.

**Termination of
the functions
of the Central
Authority
in the North of
Scotland
District and
dissolution
of the Scottish
Area Boards.**

3.—(1) The Central Authority's functions under the provisions of subsections (3) and (4) of section five of the Act of 1943 (which relate to the approval of constructional schemes prepared by the North of Scotland Board) shall cease.

(2) On the vesting date the South East Scotland Electricity Board and the South West Scotland Electricity Board and the Consultative Councils established for the respective areas of those Boards shall cease to exist.

(3) The South of Scotland Board so far as necessary for their completion and submission shall be responsible—

PART I
—cont.

(a) for the reports of the South East Scotland Electricity Board and the South West Scotland Electricity Board in relation to the year 1954–55; and

(b) for the accounts and audit of the aforesaid Boards for the said year;

and in respect of the said reports and the said accounts and audit the provisions of sections eight and forty-six of the Act of 1947 shall respectively apply to the South of Scotland Board in like manner as those sections applied to the South East Scotland and South West Scotland Electricity Boards before the vesting date.

PART II

TRANSFERS OF UNDERTAKINGS

4.—(1) Subject to the provisions of this Part of this Act, all property, rights, liabilities and obligations which immediately before the vesting date were property, rights, liabilities and obligations of the South East Scotland and South West Scotland Electricity Boards, shall, on that date by virtue of this Act and without further assurance, be transferred to the South of Scotland Board.

Transfers of
assets and
liabilities of
Scottish Area
Boards.

(2) Subject to the provisions of this Part of this Act, every agreement to which either of the said Area Boards were a party immediately before the vesting date, whether in writing or not and whether or not of such a nature that rights, liabilities and obligations thereunder could be assigned by the Area Board, shall, unless its terms or subject matter make it impossible that it should have effect as modified in the manner provided by this subsection, have effect as from the vesting date as if—

(a) the South of Scotland Board had been a party to the agreement;

(b) for any reference (however worded and whether express or implied) to either of the said Area Boards there were substituted, as respects anything falling to be done on or after the vesting date, a reference to the South of Scotland Board;

(c) for any reference (however worded and whether express or implied) to any member or officer of either of the said Area Boards there were substituted, as respects anything falling to be done on or after the vesting date, a reference to such person as the South of Scotland Board may appoint, or, in default of appointment, to

PART II
—cont.

the member or officer of the Board who corresponds as nearly as may be to the first-mentioned member or officer; and

- (d) in the case of an agreement for the rendering of personal services to either of the said Area Boards, the services to which the agreement relates were, on and after the vesting date, any services under the South of Scotland Board, to be selected by that Board, which are reasonably equivalent services.

(3) Other documents, not being enactments, which refer, whether specifically or generally, to either of the said Area Boards shall be construed in accordance with the provisions of the last foregoing subsection, so far as applicable.

(4) Without prejudice to the generality of the foregoing provisions of this section, where, by the operation of any of the said provisions, any right, liability or obligation vests in the South of Scotland Board, the Board and all other persons shall, as from the vesting date, have the same rights, powers and remedies (and in particular the same rights as to the taking or resisting of legal proceedings or the making or resisting of applications to any authority) for ascertaining, perfecting or enforcing that right, liability or obligation as they would have had if it had at all times been a right, liability or obligation of the Board, and any legal proceedings or applications to any authority pending on the vesting date by or against either of the said Area Boards, in so far as they relate to any property, right, liability or obligation vested in the South of Scotland Board by virtue of this Act, or to any agreement or document which has effect in accordance with subsection (2) or subsection (3) of this section, or to any enactment applied to the Board by or under this Act, shall be continued by or against the Board to the exclusion of the Area Board.

(5) The Secretary of State may make regulations for the registration of the title of the South of Scotland Board to assets vesting in them by virtue of this Act, being assets of a kind subject to provisions for the registration of title thereto, for the completion of the title of the Board to heritable property vesting as aforesaid, and for any other matters for which provision appears to the Secretary of State to be necessary or expedient for securing the effective transfer of any assets vesting in the Board by virtue of this Act.

(6) Notwithstanding anything in this section no right, liability or obligation under any agreement for the rendering by any person of services to either of the said Area Boards as a member of that Board shall be transferred to the South of Scotland Board, except any liability in respect of fees earned or expenses incurred before the vesting date.

5.—(1) Subject to the provisions of this Part of this Act, there shall on the vesting date be transferred by virtue of this Act and without further assurance to the South of Scotland Board all land in Scotland, and rights in, on or over such land, and all installations, plant, stores and equipment in Scotland which immediately before the vesting date were the property of the Central Authority, and not held by them exclusively or mainly in connection with their functions in England or Wales, together with any rights, liabilities and obligations relating thereto, and any other property, rights, liabilities and obligations held or enjoyed by or incumbent on the Central Authority exclusively or mainly in connection with their functions in Scotland.

PART II
—cont.

Transfer of
Central
Authority's
undertaking in
Scotland.

(2) Subject to the provisions of the next following subsection, the provisions of subsections (2) to (6) of the last foregoing section shall apply in relation to the Central Authority as to an Area Board, but only as respects property, rights, liabilities and obligations transferred by virtue of the last foregoing subsection.

(3) The Ministers may make regulations—

- (a) for excluding from or including in the property, rights, liabilities and obligations which vest in the South of Scotland Board by virtue of this Act property, rights, liabilities and obligations held, used, acquired or incurred by the Central Authority partly in relation to their functions in Scotland and partly in relation to their other functions;
- (b) for substituting for any agreement entered into by the Central Authority partly in respect of their functions in Scotland and partly in respect of their other functions separate agreements in the requisite terms, and for any apportionments and indemnities consequent thereon.

(4) The power conferred by this and the last foregoing sections on the Ministers to make regulations shall be exercisable by statutory instrument, and any regulations so made by the Ministers shall be laid before Parliament.

6.—(1) Without prejudice to the generality of the two last foregoing sections there shall by virtue of these sections be transferred to the South of Scotland Board— Further provisions as to transfers.

- (a) the obligation under section twenty-two of the Act of 1947 to pay compensation to local authorities in so far as the obligation relates to local authorities in the South of Scotland District;
- (b) all mortgages and other loans vesting in the Central Authority by virtue of section fourteen of the Act of 1947 in so far as such mortgages and loans relate to the South of Scotland District;
- (c) all balances and overdrafts of the Central Authority in or on banks in Scotland; and

PART II
—cont.

(d) the interest of the Central Authority in the Galloway Housing Company Limited.

(2) Subject to paragraph (c) of the last foregoing subsection, there shall not, by reason of the vesting of any property, rights, liabilities or obligations of the Central Authority in the South of Scotland Board, be transferred to that Board any liability or obligation of the Authority in respect of money borrowed or stock issued by the Authority.

(3) Notwithstanding the provisions of the two last foregoing sections, rights and liabilities of the South East Scotland and South West Scotland Electricity Boards against or to one another or against or to the Central Authority shall not be transferred, but shall be extinguished on the vesting date.

Financial
adjustment
between the
South of
Scotland
Board and the
Central
Authority.

7.—(1) Subject to the provisions of this section, there shall be payable to the Central Authority by the South of Scotland Board an amount equal to the final balances due to that Authority from the South East Scotland and the South West Scotland Electricity Boards.

(2) Subject to the provisions of this section, there shall also be payable to the Central Authority by the South of Scotland Board the sum by which the value of the property and rights transferred from the Authority under this Part of this Act exceeds the liabilities and obligations so transferred.

(3) To the extent that any capital liability of the Central Authority on British Electricity Stock is attributable to the South of Scotland District, any sum due to that Authority under the two foregoing subsections shall be treated as a loan from the Authority to the South of Scotland Board, and the amount and the terms of any such loan shall be such as may be agreed between the Authority and the Board and approved by the Ministers and the Treasury.

(4) The terms of any such loan as aforesaid shall as respects duration and rate of interest have regard to that content of existing issues of British Electricity Stock which is attributable to the South of Scotland District.

(5) Where any such loan as aforesaid has been arranged under the provisions of this section, the South of Scotland Board shall pay such share as the Ministers shall approve of the expenses of the issue of British Electricity Stock existing at the vesting date, and of the expenses of the management of such stock until the expiry of the loan.

(6) Any balance due under subsections (1) and (2) of this section after deduction of any sum which is to be treated as a loan as aforesaid shall be discharged in cash together with interest on the amount thereof for the time being outstanding at such annual rate as may be agreed between the Central Authority and the South of Scotland Board.

(7) For the purposes of this section—

PART II
—cont.

(a) the amount equal to the final balances due to the Central Authority from the South East Scotland and the South West Scotland Electricity Boards shall be taken to be the sum of the amounts shown as the liabilities of those Boards to the Central Authority in the balance sheets of the Boards for the financial year ending immediately before the vesting date, reduced by those liabilities and obligations of the Boards that are treated in the balance sheet of the Central Authority for the said year as liabilities of that Authority; and

(b) the value of any property, rights, liabilities or obligations shall be arrived at by taking or apportioning, in a manner approved by the Ministers, the items under all relevant headings in the balance sheet of the Central Authority for the said year.

(8) Any sum due to the Central Authority, and treated as a loan from that Authority to the South of Scotland Board, shall be deemed to be a loan raised under section twelve of the Act of 1943, and the provisions of that Act relating to borrowing by the South of Scotland Board shall apply accordingly.

8.—(1) For the purposes of section fifty-two of the Finance Act, 1946 (which exempts from stamp duty certain documents connected with nationalisation schemes), any transfers of property from one Electricity Board to another effected by virtue of the provisions of sections four and five of this Act or of any regulations made thereunder shall be deemed to be part of the initial putting into force of such a scheme. Supplementary provisions.

(2) Any question or dispute between Electricity Boards arising out of or in connection with the transfer by virtue of sections four and five of this Act of any property, rights, liabilities or obligations, or from the operation of regulations made under those sections, or from the operation of section seven of this Act, shall, failing agreement between the parties, be decided by the Ministers.

PART III

FINANCIAL PROVISIONS

9. Subject to the provisions of this Act the payments which under Part V of the Local Government Act, 1948, are to be made year by year by the Central Authority for the benefit of local authorities in Scotland with areas outside the North of Scotland District shall, from the vesting date, be made by the South of Scotland Board. Payments by the South of Scotland Board under Part V of the Local Government Act, 1948.

10.—(1) Subsection (1) of section forty-seven of the Act of 1947 (which relates to the issue of stock by the North of Scotland Board to the Central Authority in respect of compensation to Amendments to s. 47 of the Act of 1947.

PART III
—cont.

holders of securities) shall have effect as if to that subsection there were added the following proviso—

“ Provided that if any such body immediately before the vesting date held securities or the whole of the beneficial interest in securities of another body to whom Part II of this Act applies, being a body whose property, rights, liabilities and obligations do not vest in the North of Scotland Board—

- (a) there shall be determined by agreement between the North of Scotland Board and the Central Authority or, in default of such agreement, by the Secretary of State and the Minister jointly the amount of compensation that would have been payable in respect of those securities of that other body if they, or the beneficial interest therein, had not been held by a body to whom Part II of this Act applies; and
- (b) the amount of stock issuable by the North of Scotland Board to the Central Authority under this subsection shall be reduced by an amount to be agreed between the North of Scotland Board and the Central Authority or, in default of such agreement, by such amount as may be determined by the Treasury.”

(2) On and after the vesting date, where the Central Authority are under section twenty-two of the Act of 1947 paying compensation to any local authority within the area of the North of Scotland District, it shall be the duty of the North of Scotland Board to make such payments to that local authority as are required by the said section; and accordingly subsection (3) of section forty-seven of the Act of 1947 shall cease to have effect.

(3) In relation to the South of Scotland Board, in the proviso to subsection (7) of section forty-seven of the Act of 1947 (which, as amended by the Hydro-Electric Development (Scotland) Act, 1952, provides that loans raised by the North of Scotland Board shall not at any time exceed the sum of two hundred million pounds) for the words “two hundred million pounds” there shall be substituted the words “seventy-five million pounds”:

Provided that any sum due to the Central Authority and treated as a loan from that Authority to the South of Scotland Board by virtue of the provisions of section seven of this Act, or any money borrowed by the Board for the purpose of discharging in cash any balance due under subsections (1) and (2) of that section shall, for the purposes of the said subsection (7), be excluded from the aggregate of any loans raised by the Board.

(4) Any increase attributable to the foregoing subsection in the sums which may be required by the Treasury for fulfilling any guarantees given under section fourteen of the Act of 1943 shall be charged on and issued out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

PART IV

MISCELLANEOUS AND GENERAL

11.—(1) Any question or dispute arising between the Scottish Electricity Boards (other than a question or dispute falling to be determined in accordance with the provisions of subsection (2) of section eight of this Act or of subsection (5) of section sixteen of the Act of 1943), failing agreement between the Boards concerned, shall be determined by the Secretary of State or by an arbiter appointed by the Secretary of State.

Disputes
between
Electricity
Boards.

(2) Any arbiter so appointed shall have the like powers for securing the attendance of witnesses and the production of documents, and with regard to the examination of witnesses on oath and the awarding of expenses, as if the arbitration were under a submission.

(3) The arbiter may, and if so directed by the Court of Session shall, state a case for the opinion of that Court on any question of law arising in the proceedings.

(4) Any award of the Secretary of State or, as the case may be, of an arbiter under the foregoing provisions of this section may be recorded in the Books of Council and Session for execution, and may be enforced accordingly.

12.—(1) The Ministers shall by regulations require the South of Scotland Board to pay, in such cases and to such extent as may be specified in the regulations, compensation to officers of any Electricity Board whose functions have been transferred in whole or in part by virtue of this Act to the South of Scotland Board, being officers who suffer loss of employment or loss or diminution of emoluments or pension rights or whose position is worsened in consequence of any such transfer; and the provisions of subsections (3) to (6) and subsection (8) of section fifty-five of the Act of 1947 (which relates to the payment of compensation to officers of electricity undertakings transferred under that Act) shall apply to any regulations made in pursuance of this section as if these regulations had been made under subsection (1) of the said section fifty-five.

Compensation
to officers and
members of
Boards in
connection
with transfers.

(2) The Ministers shall, with the approval of the Treasury, require the South of Scotland Board to make to any person holding office as a member of the South East Scotland or South West Scotland Electricity Board immediately before the said Boards ceased to exist, being a person who suffers loss of employment or loss or diminution of emoluments or pension rights or whose position is worsened in consequence of the dissolution of the said Electricity Boards, payment of such compensation for loss of office as the Ministers may, with the approval of the Treasury, determine.

PART IV
—cont.

(3) The power to make regulations under this section shall be exercisable by statutory instrument and no regulations shall be made by the Ministers under this section unless a draft of the regulations has been laid before Parliament and has been approved by a resolution of each House of Parliament.

Expenses.

13. There shall be defrayed out of moneys provided by Parliament any expenses incurred by any Minister of the Crown or Government Department in consequence of the provisions of this Act.

Interpretation.

14.—(1) In this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them—

“ the Act of 1947 ” means the Electricity Act, 1947;

“ the Ministers ” means the Secretary of State and the Minister of Fuel and Power;

“ the Scottish Electricity Boards ” means the North of Scotland Board and the South of Scotland Board; and

“ the vesting date ” means the first day of April, nineteen hundred and fifty-five.

(2) References in this Act to any enactment shall, unless the context otherwise requires, be construed as references to that enactment as amended by or under any other enactment including this Act.

**Adaptation of
enactments
and repeals.**

15.—(1) As from the vesting date any enactment to which any provision of the First Schedule to this Act applies shall have effect subject to the adaptations and modifications specified in that Schedule, being adaptations and modifications required for the purpose of applying the said enactments to the South of Scotland Board or otherwise required in consequence of the provisions of this Act or relating to matters of minor detail:

Provided that the said First Schedule, so far as it relates to the First Schedule to the Act of 1943, and to section twelve of that Act, so far as the provisions of that section are necessary for enabling the South of Scotland Board to borrow for the payment of administrative and preliminary expenses, shall come into operation on the passing of this Act.

(2) As from the vesting date the enactments specified in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Savings.

16.—(1) Nothing done by or in relation to the Minister, or the Minister and the Secretary of State acting jointly, before the vesting date, shall be invalidated by the passing of this Act.

(2) Anything in process of being done by or in relation to the Minister, or the Minister and the Secretary of State acting jointly,

in connection with any functions transferred under Part I of this Act at the vesting date (and, in particular, legal proceedings then pending to which the Minister is a party) may be continued by or in relation to the Secretary of State.

PART IV
—cont.

(3) Authorities and appointments given or made by the Minister in connection with any functions as aforesaid, other than an appointment to an Electricity Board or Consultative Council dissolved by subsection (2) of section three of this Act, shall on the vesting date, continue in force as if made or given by the Secretary of State:

Provided that nothing in this subsection shall prevent any authority or appointment being terminated as from the coming into operation of this Act.

(4) The Scottish Electricity Boards shall be deemed to be parties to any agreement entered into by the Central Authority, before the vesting date and subsisting at that date, with any organisation in pursuance of the Authority's duty under the provisions of section fifty-three of the Act of 1947.

(5) Any Act of Parliament or instrument shall, so far as may be necessary for or in consequence of the transfers effected by this Act, have effect as if references to, or references which are to be construed as references to, the Minister, his Department or any of his officers, were references to the Secretary of State or to the Department of, or to the corresponding officers of, the Secretary of State.

(6) The last foregoing subsection applies to all Acts of Parliament and instruments whether passed, executed, made or given before or after the passing or coming into operation of this Act, except that—

- (a) it does not apply to Acts of Parliament passed after the coming into operation of this Act; and
- (b) in relation to Acts of Parliament or instruments passed, executed, made or given after the passing of this Act, it has effect subject to any contrary intention which appears from the Act or instrument.

17. This Act may be cited as the Electricity Reorganisation Short title and (Scotland) Act, 1954, and shall be construed as one with the Act citation. of 1947, and the Act of 1943, the Act of 1947, as it applies to Scotland, the Hydro-Electric Development (Scotland) Act, 1952, and this Act may be cited together as the Electricity (Scotland) Acts, 1943 to 1954.

SCHEDULES

Section 15.

FIRST SCHEDULE

ADAPTATION OF ENACTMENTS

PART I

THE HYDRO-ELECTRIC DEVELOPMENT (SCOTLAND) ACT, 1943

General Adaptation

Subject to any specific adaptations or modifications made by this Schedule,—

- (a) any reference to the North of Scotland Board (except in subsection (1) of section one, subsection (1) of section two so far as relating to paragraph (d) of that subsection, subsections (2) to (4) of section eleven, subsection (3) of section twelve, section sixteen, and the Fourth Schedule) shall include a reference to the South of Scotland Board;
- (b) any reference to the North of Scotland District (except in the Second Schedule) shall include a reference to the South of Scotland District;
- (c) for any reference to the Central Authority there shall be substituted a reference to the South of Scotland Board;
- (d) for any reference to the Minister, or to the Secretary of State and to the Minister, or to the Ministers acting jointly, there shall be substituted a reference to the Secretary of State.

Specific Adaptations or Modifications

Section

- 2. In subsection (1) the words "by water power or otherwise" shall be omitted; in relation to the South of Scotland Board there shall be substituted for the words from "within" to "District)" the words "within the South of Scotland District", and for paragraphs (a) and (c) the words "to plan and carry out an efficient and economical distribution of supplies of electricity to persons in that District".

In relation to the South of Scotland Board, subsections (2) and (3) shall be omitted; and at the end of the section there shall be added the following subsection—
 "(4) The Scottish Electricity Boards may provide bulk supplies of electricity for the Central Authority".
- 3. In paragraph (a) after the words "water power" there shall be inserted the words "and peat", and in relation to the South of Scotland Board in paragraph (c) the words "or section six" shall be omitted.

Section

1st Sch.
—cont.

5. In subsection (1) for paragraphs (a) and (b) there shall be substituted the words "the execution of works necessary for the generation of electricity by water power other than works required for the replacement or renewal of works already authorised", and the words "for any or all of these purposes" shall be omitted and in the proviso for the words "an existing generating station" there shall be substituted the words "existing works".
- In subsection (3) the words from "Central Authority" where these words first occur to the words "it to the" and the words "and has been so approved" shall be omitted.
- In subsection (4) the words "with the approval of the Central Authority" shall be omitted.
7. The word "approved" shall be omitted.
9. In subsection (3) the words "and the Central Authority" shall be omitted. In subsection (5), at the end there shall be inserted the words "in connection with a constructional scheme".
- In subsection (6) for the word "Board" there shall be substituted the words "Scottish Electricity Boards", and after the word "amounts" there shall be inserted the words "and in such proportions".
10. For subsection (1) there shall be substituted the following subsection—
- “(1) It shall be the duty of the Scottish Electricity Boards so to exercise and perform their functions under this Act as to secure that the revenues of each Board are not less than sufficient to meet their outgoings properly chargeable to revenue account taking one year with another.”;
- and at the end of subsection (2) there shall be inserted the following section—
- “Fixing and variation of tariffs. 10A.—(1) Subject to the provisions of the Electricity Act, 1947, with respect to railways, the prices to be charged by the Scottish Electricity Boards for the supply of electricity shall be in accordance with such tariffs as may be fixed by each Board from time to time.
- (2) The tariffs fixed under the last foregoing subsection shall be so framed as to show the methods by which and the principles on which the charges are to be made as well as the prices which are to be charged, and shall be published in such manner as in the opinion of each Board will secure adequate publicity for them:
- Provided that—
- (a) the tariffs in force immediately before the vesting date shall remain in force, until varied or replaced by tariffs fixed in accordance with this section, and

1ST SCH.
—cont.Section
10.—cont.

(b) nothing in this subsection shall affect any agreement in force immediately before the vesting date.

(3) A tariff fixed by a Board in respect of a supply of electricity by virtue of the provisions of this Act, may include a rent or other charge in respect of electrical fittings provided by the Board on the premises of the consumer.

(4) Notwithstanding anything in the foregoing provisions of this section, a Board may enter into an agreement with any consumer for the supply of electricity to him on such terms as may be specified in the agreement:

Provided that a Board, in exercising their powers under this subsection, shall secure that such agreements are only made in cases where the tariffs in force are not appropriate owing to special circumstances.

(5) A Board, in fixing tariffs and making agreements under this section, shall not show undue preference to any person or class of persons and shall not exercise any undue discrimination against any person or class of persons."

11. In subsection (2) after the words "expenses of the Board" there shall be inserted the words "which are properly chargeable to revenue".

In subsection (3) the words from "but a reserve fund" to "at that time" and the words from "and, if the fund" to the end of the subsection shall be omitted.

At the end of the subsection there shall be added the following section:—

"Reserve Fund
of South of
Scotland Board.

11A.—(1) The South of Scotland Board shall establish and maintain a general reserve fund.

(2) The South of Scotland Board shall contribute to the general reserve fund such sums at such times as the Board may determine, and the management of the said fund and the application of the moneys comprised therein shall be as the Board may determine:

Provided that—

(a) no part of the said fund shall be applied otherwise than for the purposes of the Board; and

(b) the Secretary of State shall have power to give directions to the Board with the approval of the Treasury as to any matter relating to the establishment or management of the said fund, the

Section

1st SCH.
—cont.

11.—cont.

carrying of sums to the credit thereof, or the application thereof notwithstanding that the directions may be of a specific character.

(3) The foregoing provisions of this section shall be without prejudice to the power of the South of Scotland Board to establish appropriate reserves for replacements or other purposes.

(4) It is hereby declared that one of the purposes of the general reserve fund is the prevention of frequent fluctuations in the charges made by the South of Scotland Board, and the powers of the Board in relation to the said fund shall be exercised accordingly.”

12. In subsection (1) in relation to the South of Scotland Board, after the words “consent of the Secretary of State” there shall be inserted the words “and with the approval of the Treasury”.

14. For subsection (5) there shall be substituted the following subsections:—

“(5) Immediately after a guarantee is given under this section, the Treasury shall lay a statement of the guarantee before each House of Parliament.

(6) Where any sum is issued out of the Consolidated Fund under this section, the Treasury shall forthwith lay before each House of Parliament a statement that that sum has been issued.”

15. In subsection (3) the words “and to the Minister of Fuel and Power” shall be omitted.

16. In this section there shall be substituted for the words “the Board” wherever these words occur except the last two occurrences in subsection (4) the words “the North of Scotland Board”.

In sub-paragraph (i) of paragraph (b) and in paragraph (c) of subsection (1) the words “in Scotland” shall be omitted.

There shall be substituted for subsection (3) the following subsections:—

“(3) The North of Scotland Board may purchase electricity from the South of Scotland Board on such terms and conditions as may be agreed by the Boards.

(3A) The Scottish Electricity Boards may purchase electricity from any other person (other than an Area Board) on such terms and conditions as may be agreed with that person:

Provided that—

- (a) where any purchase of electricity is made by such a Board from a person in the district of the other Board, any such purchase shall require the approval of that other Board; or

1ST SCH.
—cont.**Section**

- 16.—*cont.* (b) where any purchase of electricity is made by such a Board from a person in the area of an Area Board, any such purchase shall require the approval of the Central Authority."

In subsection (4) for the words "the Central Authority or the", in both places where these words occur, there shall be substituted the word "either"; and the words "in accordance with a constructional scheme" shall be omitted.

17. For this section there shall be substituted the following section:—

"The Boards and the Central Authority to collaborate.

17. The Scottish Electricity Boards and the Central Authority in any matter, in relation to which the execution of their powers and duties may be facilitated by consultation or joint action, shall consult together and shall so far as possible act in collaboration, and for that purpose they may enter into such agreements as they may think necessary."

- First Schedule. For paragraph 1 there shall be substituted the following paragraph—

"1. The Board shall consist of a Chairman, and not less than four nor more than eight other members of whom one or more may be appointed Deputy Chairman or Chairmen. The Chairman, the Deputy Chairman or Chairmen and the other members of the Board shall be appointed by the Secretary of State."

- Fourth Schedule. For the words "the Board" there shall be substituted the words "the North of Scotland Board"; in paragraph 2 the words "in Scotland" shall be omitted and in paragraph 4, in sub-paragraph (a), the words from "(except" to "forty-three)" shall be omitted.

PART II**THE ELECTRICITY ACT, 1947***General Adaptation*

The Authority established by section one shall be known by the name of the Central Electricity Authority and that name shall be substituted for the words "British Electricity Authority" wherever occurring.

Subject to any specific adaptations or modifications made by this Schedule, any reference to the North of Scotland Board or to the North of Scotland District (except in subsection (7) of section one, in subsections (1) to (6) and subsection (8) of section forty-seven, and section sixty-seven) shall include a reference to the South of Scotland Board or to the South of Scotland District respectively.

Section

*Specific Adaptations or Modifications*1ST SCH.
—cont.

1. In subsection (1) for the words from "Great Britain" to "District" there shall be substituted the words "England and Wales", and at the end of the subsection there shall be inserted the following subsection—

"(1A) The Central Authority may provide bulk supplies of electricity for the Scottish Electricity Boards."

In subsection (4), in paragraph (b), after the words "Central Authority" there shall be inserted the words "or, where the agreement relates to the acquisition of bulk supplies of electricity from any person in the district of a Scottish Electricity Board, with the approval of that Board."

In subsection (5) for the words "The provisions" there shall be substituted the words "Paragraphs (a) and (c)", the words from "any approval of the acquisition" to "District and" shall be omitted, and at the end of the subsection there shall be inserted the following proviso—

"Provided that nothing in the provisions of this or the last foregoing subsection shall affect the operation of section sixteen of the Act of 1943 in relation to transactions between the North of Scotland Board and the South of Scotland Board."

2. In subsection (8) in paragraph (b) after "1943" there shall be inserted the words "and the Electricity Reorganisation (Scotland) Act, 1954," for the words "Minister and the Secretary of State jointly" there shall be substituted the words "Secretary of State", and at the end of that subsection there shall be added—

"(8A) Where an order under subsection (7) of this section affects an Electricity Board in England and a Scottish Electricity Board, that order shall be made by the Minister and the Secretary of State jointly."

4. For subsection (7) there shall be substituted the following subsections—

"(7) The foregoing provisions of this section, except subsection (1), shall apply to the Scottish Electricity Boards and to the districts of these Boards as if these Boards were Area Boards and these Districts were the areas of Area Boards, subject to the modification that an order or determination affecting either Board or District shall be made by the Secretary of State and in relation to the South of Scotland Board and the South of Scotland District any reference to this Act shall include a reference to the Electricity Reorganisation (Scotland) Act, 1954.

(8) Where an Area Board and their area and a Scottish Electricity Board and their district are both affected by an order or determination under this section, any such order or determination shall be made by the Minister and the Secretary of State jointly.

1st SCH.
—cont.

Section

5. In subsection (7), at the end there shall be added the words “, and in relation to the South of Scotland Board and the South of Scotland District any reference to this Act shall include a reference to the Electricity Reorganisation (Scotland) Act, 1954 ”.
7. In subsection (14), in paragraph (a) the word “ and ” shall be omitted, and at the end there shall be added the words “; and
(c) any reference to this Act shall include a reference to the Act of 1943, and, in relation to the South of Scotland Board and the South of Scotland District, a reference to the Electricity Reorganisation (Scotland) Act, 1954 ”.
19. In subsection (1) after the words “ Electricity Boards ” and “ Electricity Board ” there shall be inserted the words “ in England or Wales ”.

For subsection (2) there shall be substituted the following subsections—

“(2) The provisions of the last foregoing subsection shall apply to the Scottish Electricity Boards with the substitution for any reference to the Minister of a reference to the Secretary of State, and for the reference to the Central Authority of a reference to these Boards, and the reference to this Act shall include a reference to the Electricity Reorganisation (Scotland) Act, 1954.

(3) An order under this section may relate to transfers as aforesaid between an Electricity Board in England or Wales and a Scottish Electricity Board:

Provided that any such order shall be made by the Minister and the Secretary of State jointly after consultation with the Central Authority and with the Scottish Electricity Board concerned.”

44. In subsection (1) after the word “ revenues ” there shall be inserted the words “ or of the revenues of the South of Scotland Board ”, after the words “ as the Authority ” there shall be inserted the words “ or the Board, as the case may be ”; in paragraph (a) of the proviso, after the words “ Area Board ” there shall be inserted the words “ or, as the case may be, the South of Scotland Board ”, and in relation to the South of Scotland Board for paragraph (b) there shall be substituted the following paragraph—

“(b) the Secretary of State shall have power to give directions to the South of Scotland Board with the approval of the Treasury as to the application of any such excess notwithstanding that the directions may be of a specific character.”

Section

1st SCH.

—cont.

45. After the words "Central Authority" there shall be inserted the words "the South of Scotland Board"; and at the end of the section there shall be added the following subsection—

"(2) In this section, in relation to the South of Scotland Board—

- (a) references to the central reserve fund shall be construed as references to the general reserve fund established under section eleven A of the Act of 1943;
- (b) the reference to revenue account, where that reference first occurs, shall be construed as a reference to the general fund established under section ten of the said Act;
- (c) the reference to Part II of this Act shall include a reference to the Electricity Reorganisation (Scotland) Act, 1954; and
- (d) the reference to this Act last occurring shall include a reference to the Act of 1943."

49. In subsection (1) for the words from "except" to "that District" there shall be substituted the words "in England or Wales and of the Scottish Electricity Boards to provide in their respective Districts,".

For subsections (4) and (5) there shall be substituted the following subsections—

"(4) The Central Authority may with the approval of the South of Scotland Board provide in the South of Scotland District a supply of electricity to railway undertakers under this section, and a supply provided by the Central Authority outside the said District may with the like approval be used in that District.

(5) The South of Scotland Board may with the approval of the Central Authority provide in England or Wales a supply of electricity to railway undertakers under this section, and a supply provided by the South of Scotland Board in the District of that Board may with the like approval be used in England or Wales.

(5A) Either Scottish Electricity Board may with the approval of the other provide in the District of the other a supply of electricity to railway undertakers under this section, and a supply provided by either Board in their District may with the like approval be used in the District of the other".

In subsection (6), in the proviso, for any reference to the North of Scotland District and the North of Scotland Board there shall be substituted respectively references to the South of Scotland District and the South of Scotland Board.

1ST SCH.
—cont.

Section

50.

At end add the following subsection—

“(5) In the application of subsection (1) of this section to Scotland, for any reference to the Central Authority there shall be substituted a reference to the Scottish Electricity Boards.”

51.

At end add the following subsection—

“(3) This section shall apply to the Central Authority as it applies to an Area Board.”

53.

In subsection (1) for the words from “to seek consultation” to “such agreements” there shall be substituted the words “the North of Scotland Board and the South of Scotland Board to seek joint consultations with any organisation appearing to them to be appropriate with a view to the conclusion between the aforesaid Electricity Boards and that organisation of such joint agreements”.

For subsections (2) to (4) there shall be substituted the following subsections—

“(2) It shall be the duty of every Area Board to comply with any agreement entered into for the purposes of this section by the Central Authority, and that Authority before entering into any such agreement as aforesaid shall consult with the Area Boards.

(3) Electricity Boards which are a party to any agreement entered into for the purposes of this section shall send to the Minister, the Secretary of State and the Minister of Labour and National Service, a copy of that agreement.”

60.

In subsection (1) after the word “Minister” there shall be inserted the words “and the Secretary of State”, after the word “such” there shall be inserted the word “joint” and for the words “he thinks” there shall be substituted the words “they think”.

64.

In subsection (1) after the word “Minister” there shall be inserted the words “or, as the case may be, the Secretary of State”.

66.

In subsection (1) at the end there shall be inserted the words “or the Electricity Reorganisation (Scotland) Act, 1954”.

67.

In subsection (1) in the definition of “financial year”, in paragraph (a) there shall be substituted for the words “the North of Scotland Board” the words “either of the Scottish Electricity Boards”, and after the definition of “securities” there shall be inserted—

“‘South of Scotland Board’ means the South of Scotland Electricity Board constituted under the Electricity Reorganisation (Scotland) Act, 1954;

‘South of Scotland District’ means the district referred to in subsection (1) of section two of the Electricity Reorganisation (Scotland) Act, 1954”.

PART III

ENACTMENTS OTHER THAN THE HYDRO-ELECTRIC DEVELOPMENT
(SCOTLAND) ACT, 1943, AND THE ELECTRICITY ACT, 1947*General Adaptation*

Subject to any specific adaptations or modifications made by this Schedule, references in any of the provisions of the Electricity (Supply) Acts, 1882 to 1926, the Schedule to the Electric Lighting (Clauses) Act, 1899, as incorporated with the Act of 1947, and Part V of the Local Government Act, 1948—

- (a) to the Minister or the Board of Trade (except in relation to sections forty-nine to fifty-four and fifty-seven to fifty-nine of the Schedule to the Electric Lighting (Clauses) Act, 1899, as incorporated with the Act of 1947, and the reference to the Board of Trade in section eighty of that Schedule) shall, in relation to the Districts of the Scottish Electricity Boards and these Boards, be construed as references to the Secretary of State; and
- (b) to the North of Scotland Board (except in section ninety-nine of the Local Government Act, 1948) shall include a reference to the South of Scotland Board.

Subject to any specific adaptations or modifications made by this Schedule, references in any of the provisions of the aforesaid enactments, other than Part V of the Local Government Act, 1948, to the North of Scotland District shall include a reference to the South of Scotland District.

*Specific Adaptations or Modifications**Enactment**Adaptation or Modification*

Electric Lighting Act,
1882 (45 & 46 Vict.
c. 56).

- | | | |
|-------|--------|---|
| s. 12 | | For the words "the whole of Great Britain except the North of Scotland District" there shall be substituted the words "the whole of England and Wales". |
|-------|--------|---|

The Electric Lighting
Act, 1888 (51 & 52
Vict. c. 12).

- | | | |
|------|--------|--|
| s. 4 | | For any reference to the Minister in relation to the power to make regulations under this section there shall be substituted a reference to the Minister and the Secretary of State. |
|------|--------|--|

1ST SCH.
—cont.

Enactment

Adaptation or Modification

The Schedule to the
Electric Lighting
(Clauses) Act, 1899,
as incorporated with
the Electricity Act,
1947.

- s. 4 ... For the words "the whole of Great Britain except the North of Scotland District" there shall be substituted the words "the whole of England and Wales", and at the end there shall be added the following paragraph—
 "(d) in relation to the South of Scotland Board, the South of Scotland District".

Electric Lighting Act,
1909 (9 Edw. 7.
c. 34).

- s. 2 ... Subject to the provisions of the Act of 1943 relating to constructional schemes, the provisions of this section shall apply to the Scottish Electricity Boards as they apply to the Central Authority.

The Local Government
Act, 1948 (11 & 12
Geo. 6. c. 26).

- s. 85 ... In subsection (2) the words "the British Electricity Authority" and the words "or an Area Electricity Board" shall be omitted.
- s. 92 ... In subsection (1), in relation to the South of Scotland Board, for the reference to the first day of April, nineteen hundred and forty-eight, there shall be substituted a reference to the first day of April, nineteen hundred and fifty-five.
- s. 96 ... In subsection (1) for any reference to the British Electricity Authority in relation to payments for the benefit of local authorities in Scotland with areas outside the North of Scotland District there shall be substituted a reference to the South of Scotland Electricity Board.
- s. 97 ... In subsection (2) for the reference to the British Electricity Authority there shall be substituted a reference to the South of Scotland Electricity Board.

*Enactment**Adaptation or Modification*1ST SCH.
—cont.

The Local Government
Act, 1948 (11 & 12
Geo. 6. c. 26)—*cont.*

s. 98

For subsections (2) and (3) there shall be substituted the following subsections—

“(2) The Minister of Fuel and Power (in relation to England and Wales) and the Secretary of State (in relation to the South of Scotland District) shall ascertain and certify, for the calendar year nineteen hundred and forty-seven, the total number of units of electricity to be taken into account under subsection (5) or (6) of this section.

(3) The Minister of Fuel and Power or the Secretary of State, as the case may be, shall then ascertain and certify the amount by which the total number of units to be so taken into account for the last calendar year ending before the beginning of the year for which the payment by the Central Electricity Authority or the South of Scotland Electricity Board is to be made exceeds or falls short of the number ascertained under subsection (2) of this section.”

For subsection (5) there shall be substituted the following subsections—

“(5) In relation to England and Wales, the number of units to be taken into account for any year is—

- (a) the total number of units supplied in England and Wales to consumers by authorised undertakers (in the case of the year nineteen hundred and forty-seven) or by Electricity Boards (in the case of any other year); less
- (b) forty-five per cent. of the units transmitted in that year by authorised undertakers or Electricity Boards from Scotland to England and Wales; plus
- (c) forty-five per cent. of the units transmitted in that year by authorised undertakers or Electricity Boards from England and Wales to Scotland.

1ST SCH.
—cont.

Enactment

The Local Government
Act, 1948 (11 & 12
Geo. 6. c. 26)—cont.
s. 98—cont. ...

Adaptation or Modification

(6) In relation to the South of Scotland District, the number of units to be taken into account for any year is—

(a) the total number of units supplied in the South of Scotland District to consumers by authorised undertakers (in the case of the year nineteen hundred and forty-seven) or by Electricity Boards (in the case of any other year); less

(b) forty-five per cent. of the units transmitted in that year by authorised undertakers or Electricity Boards from England and Wales or the North of Scotland District to the South of Scotland District; plus

(c) forty-five per cent. of the units transmitted in that year by authorised undertakers or Electricity Boards to England and Wales or the North of Scotland District from the South of Scotland District.

(7) For the purposes of this section—

(a) ‘authorised undertakers’ means authorised undertakers within the meaning of section thirteen of the Electricity Act, 1947;

(b) ‘consumer’ does not include an authorised undertaker or Electricity Board;

(c) ‘Electricity Board’ has the meaning assigned to it by section one of the Electricity Act, 1947.”

s. 99 In subsection (4), in paragraph (a) after the words “the Board” and in paragraph (b), after the word “Authority” there shall be inserted the words “the South of Scotland Electricity Board”, and, in paragraph (c), after the word “Authority” there shall be inserted the words “or from the South of Scotland Electricity Board”.

*Enactment**Adaptation or Modification*1ST SCH.
—cont.

The Local Government
Act, 1948 (11 & 12
Geo. 6. c. 26)—*cont.*

- s. 100 ... In subsection (3) the words “the British Electricity Authority” shall be omitted.
- s. 107 ... The words “and the Minister of Fuel and Power acting jointly” shall be omitted, and for the words “British Electricity Authority” there shall be substituted the words “South of Scotland Electricity Board”.

SECOND SCHEDULE

Section 15.

PART I

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 6. c. 54.	The Electricity Act, 1947	In section one, subsection (2) so far as it relates to the South East Scotland and South West Scotland Area Boards. In section three, in subsection (2), paragraph (c). Schedule 1 so far as it relates to the South East Scotland and South West Scotland Electricity Boards. In Schedule 4, in Part I the adaptation or modification of section fourteen of the Electric Lighting Act, 1882; and in Part III, in the adaptation or modification of paragraph (b) of section ten of the Schedule to the Electric Lighting (Clauses) Act, 1899, the words from “and paragraph (b)” to “1943” and the words “the said”.

2ND SCH.
—cont.

PART II

REPEALS EXTENDING TO SCOTLAND ONLY

Session and Chapter	Short Title	Extent of Repeal
10 & 11 Geo. 6. c. 54.	The Electricity Act, 1947	In section one, in paragraph (a) of subsection (4) the words "and with the approval of the Central Authority". In section two, subsection (6). Section three. In section four, in subsection (2) the words "after consultation with the Central Authority". In section five, subsection (5). Section six. Section eight except subsection (4). Sections thirty-six and thirty-seven. Sections thirty-nine to forty-three. Section forty-six.

— ∞ —

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Electric Lighting Act, 1888	51 & 52 Vict. c. 12.
Electric Lighting (Clauses) Act, 1899	62 & 63 Vict. c. 19.
Electric Lighting Act, 1909	9 Edw. 7. c. 34.
Electricity Supply (Meters) Act, 1936	26 Geo. 5. & 1 Edw. 8. c. 20.
Hydro-Electric Development (Scotland) Act, 1943	6 & 7 Geo. 6. c. 32.
Finance Act, 1946	9 & 10 Geo. 6. c. 64.
Electricity Act, 1947	10 & 11 Geo. 6. c. 54.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Hydro-Electric Development (Scotland) Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 22.